

BUTLER v. COMMERCIAL SITE IMPROVEMENTS

22CV46383

DEFENDANT'S DEMURRER TO COMPLAINT

This appears to be a wage-hour dispute. Before the Court is a defense demurrer to the operative Complaint. The demurrer is deemed off-calendar, without prejudice, for the following various reasons.

First, pursuant to Calaveras County Superior Court Local Rule 3.3.7, (effective since 1/1/18) "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Defendant did not include this required language.

Second, it is not clear from defendant's general appearance what its legal status is. A properly-formed company/entity cannot appear "in pro per" in litigation in a court of general jurisdiction, and cannot appear through an officer or agent who is not an attorney. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 730; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1149; *Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal.App.4th 1094, 1101; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284; *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 547.) If Commercial Site Improvements is simply a dba of Ms. Batch, the general appearance must so state. (See *Ball v. Steadfast-BLK* (2011) 196 Cal.App.4th 694, 701; *Pinkerton's, Inc. v. Superior Court* (1996) 49 Cal.App.4th 1342, 1348.)

Third, every demurrer must include a declaration attesting to a good faith effort to meet and confer with the pleader beforehand (CCP §431.40), and the papers on file here do not include any such declaration.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order pursuant to Rule of Court 3.1312 is required.

ZAMORA v. CLAPP

22CV46467

(Related to 16CV41649 and 19PR8129)

DEFENDANT'S DEMURRER TO COMPLAINT

This is a partnership dispute involving the management of real property and two residential units thereon. Before the Court is a demurrer to the operative verified Complaint, which includes causes of action for breach of fiduciary duty, fraud, negligence and waste. The basis for the demurrer is simple: this action should either abate or await the conclusion of the appeal in 16CV41649.

Pertinent Background

In November of 2007, Gus Zamora (father, now deceased), Dave Zamora (son and acting trustee of father's trust) and Clyde Clapp (Gus' close friend) pooled together their respective resources to acquire APN 073-044-006, commonly known as 1521 Country View Drive in Valley Springs. Although all three were to share equally in the \$138,000 down payment, Dave or Gus (the pleading is unclear) advanced Clyde's share. The balance of the purchase price was covered by a loan from Indymac.

Over the years, the parties contributed different efforts to the property, which eventually came to house a second rental dwelling. Shortly after the second dwelling was rented, a disagreement arose between the parties regarding contributions and sweat equity, prompting Gus to file a lawsuit against Clyde (16CV41649). Given to his advanced years (91) and diminishing health, Gus was represented throughout most of the case by his son Dave, in the latter's capacity as a *guardian ad litem*. Gus died while the action was pending. The dispute was subject of a bench trial in April of 2021. Following witness testimony and the admission of nearly 200 exhibits, this court found that a partnership did exist, that it was not impliedly terminated by Gus or Dave, and that Clyde breached his fiduciary duties to the other partners by treating the property as his own (recording title and keeping rent checks). Judgment was entered for Gus and Dave. This Court ordered that the subject property was to be sold, with Clyde taking 1/3 of the net proceeds and Gus/Dave to receive the balance. (See Statement of Decision dated 06/21/21, and Judgment entered 09/07/21.) This Court denied Clyde's motion for a new trial. Clyde filed an appeal, which remains active in the briefing phase. (See C095440.)

On 04/21/22, Clyde listed the property sale for \$589,000 (see CCARMLS #2006073) on his own and without involving Dave or this Court. Dave filed a motion for a preliminary injunction in the probate case (19PR8129), barring Clyde from proceeding with the sale without acknowledging Dave's interest therein. Clyde removed the listing two months